

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
FAMILY LAW DIVISION

IN RE: THE MARRIAGE OF:

SARAH HANSON,
Petitioner,

and Case No.: 24-DR-1150
Division: D

CHRISTOPHER HANSON,
Respondent.

_____/

RESPONDENT'S MOTION TO COMPEL PRODUCTION OF
RESPONDENT'S THIRD REQUEST FOR PRODUCTION OF
DOCUMENTS

COMES NOW, Christopher Hanson, Respondent, attorney on my own behalf, pursuant to Florida Family Law Rule of Procedure 12.380(a), and moves this Court for an order compelling Petitioner, Sarah Hanson ("Wife"), to fully and completely respond to Respondent's Third Request for Production of Documents, served on February 21, 2025 (attached as Exhibit A), and for an award of attorney's fees and costs. In support thereof, Respondent states:

FACTS

1. On February 21, 2025, Respondent served his Third Request for Production of Documents on Wife via email to her counsel, Scott Paul Davis, Esq., at scott@davislawtampa.com and service@davislawtampa.com, and through the Florida Courts E-Filing Portal (Docket #140).

2. The Third Request seeks documents critical to the financial and custody issues in this dissolution proceeding, including legal bills, payment records, retainer agreements, and documentation related to Wife's financial accounts and custody positions, as detailed at Docket #140.

3. Pursuant to Florida Family Law Rule of Procedure 12.350(b), Wife was required to serve her responses and produce the requested documents within thirty (30) days of service, i.e., by March 23, 2025.

4. As of March 25, 2025, the date of this filing, Wife has neither served responses nor produced any documents responsive to the Third Request, nor has she filed objections within the 30-day period.

5. This failure to comply with simple discovery mirrors Wife's ongoing noncompliance with mandatory disclosure obligations under Rule 12.285, as evidenced by her incomplete Certificate of Compliance (limiting certification to "the last 12 months" rather than the statutory periods required by Rule 12.285 and Mr. Davis's delay tactics going back to the stipulated deadline of June 28, 2024.

6. Wife's own Motion to Compel Discovery, filed December 13, 2024 (Docket #67), highlights the importance of full disclosure, yet she now withholds responses to Respondent's legitimate requests, exacerbating the discovery disputes plaguing this case.

7. Financial disclosures and discovery responses are foundational to equitable resolution in family law cases. As articulated in Daniel v. Daniel, 922 So. 2d 1041, 1045 (Fla. 4th DCA 2006), “A financial affidavit is central to the job of a court trying to do justice in a divorce case.... Decisions on whether and how to settle a case depend on full, honest financial disclosure.”

8. This principle extends to all discovery, including requests for production, to ensure transparency and fairness, especially under the present facts where there have been so many occasions of deliberate delay from Wife and her counsel that have continued without the Court even taking notice. And now, Wife actually excused from statutory requirements, it’s critical that she at least provide discovery responses.

9. Under Rule 12.380(a)(1), a party may move to compel production when another party fails to respond to a request for production. An “evasive or incomplete answer shall be treated as a failure to answer” (Rule 12.380(a)(3)), justifying relief here.

10. Florida law holds that failing to timely raise objections or respond to discovery requests results in waiver of objections. Bainter v. League of Women Voters of Fla., 150 So.3d 1115 (2014).

11. Wife’s total non-response to the Third Request by March 23, 2025, violates Rule 12.350(b). The requested documents—e.g., legal fee records, financial account details, and custody evidence—are relevant to equitable distribution (Fla. Stat. § 61.075), child support, temporary relief sought by Husband, and the children’s best interests (Fla. Stat. § 61.13), echoing the disclosure demands Wife made in her Motion to Compel (Docket #67).

12. Daniel v. Daniel emphasizes that “full, honest financial disclosure” is vital for settlement and judicial rulings (922 So. 2d at 1045). Wife’s refusal obstructs Respondent’s ability to verify her finances and move this case forward.

13. Wife’s failure to serve responses or objections by March 23, 2025, waives all potential objections, including privilege. Bainter holds that untimely objections forfeit the right to contest production even based on First Amendment privilege. Bainter v. League of Women Voters of Fla., 150 So.3d 1115 (2014); Tubero v. Chapnich extends this to privilege claims (552 So. 2d at 932, at 935). Wife’s silence mandates full production without limitation.

14. This waiver is certainly appropriate given her prior conduct—e.g., ignoring the stipulated June 28, 2024 deadline and Mr. Davis’s numerous delays ever since, as detailed throughout and specifically at Docket #97, ¶35, ¶A-M).

15. Rule 12.380(a)(4) mandates an award of reasonable attorney’s fees and costs for a successful motion to compel unless the opposing party’s position was substantially justified or other circumstances make an award unjust. Wife’s failure to respond lacks justification, especially given her own reliance on the same case law cited herein and her own pursuit of discovery through interrogatories. Respondent, acting as his own attorney, seeks compensation for his time and costs under Fla. Stat. § 61.16.

16. No hearing is necessary on these issues and an immediate order is appropriate given the Wife’s deposition on April 2 and the hearing on April 4.

REQUEST FOR RELIEF

WHEREFORE, Respondent, CHRISTOPHER HANSON, respectfully requests that this Court:

- A. Grant this Motion and compel Wife to produce all documents responsive to Respondent's Third Request for Production of Documents within 5 (5) days of the order, or at least in advance of the April 2, 2025 deposition of Petitioner;
- B. Find that Wife has waived all objections to the Third Request by failing to timely respond or object;
- C. Award Respondent attorney's fees and costs for his time and efforts in preparing and prosecuting this motion, pursuant to Rule 12.380(a)(4) and Fla. Stat. § 61.16;
- D. Grant such further relief as the Court deems just and proper.

DATED this 25th day of March, 2025.

Respectfully submitted,

/s/ Chris Hanson

CHRISTOPHER HANSON, Attorney on My Own Behalf

FL Bar # 44094

3934 E. Eden Roc. Cir.

Tampa, FL 33634

Primary E-Mail: cahanson77@yahoo.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Motion to Compel Production of Respondent's Third Request for Production of Documents, with attached Exhibits A, B, and C, has been furnished to Scott Paul Davis, Esq., via email to scott

